

**IN THE CIRCUIT COURT OF THE TWELFTH JUDICIAL CIRCUIT  
IN AND FOR MANATEE COUNTY, FLORIDA**

**COLONIAL MANOR MHC  
HOLDINGS, LLC,**

**Plaintiff/Counter-Defendant,**

**vs.**

**CASE NO.: 2021-CA-004553**

**DIVISION: D**

**LORI SKIPPER,**

**Defendant/Counter-Plaintiff/  
Third-Party Plaintiff,**

**vs.**

**COLONIAL MANOR MHC  
HOLDINGS, LLC,**

**Plaintiff/Counter-Defendant,**

**and**

**CHERYL PEAKE, in her personal and separate  
Capacity, and JILL WRIGHT, in her personal  
and separate capacity,**

**Third-Party Defendants.**

**ORDER ADOPTING AND APPROVING MAGISTRATE'S  
REPORT AND RECOMMENDATION**

Pursuant to Fla. R. Civ. P. 1.490 the Court has by specific order of reference directed that this cause be referred to a Magistrate. The Magistrate's Report and Recommendation was duly filed with the Clerk of the Court and copies thereof were furnished to the parties and/or their attorneys of record. This Court having considered the findings of fact, conclusions of law, and recommendations therein, and the Court finding that the parties have voluntarily waived the right to file exceptions to the Magistrate's Decision and have consented to the immediate entry of an Order Approving the Magistrate's Report and Recommendation, or that no exceptions to the Magistrate's Report and Recommendation have been filed within the ten day time period required by Fla. R. Civ. P. 1.490(i), it is thereupon:

**ORDERED AND ADJUDGED that:**

1. The Court approves and incorporates herein the attached Magistrate's Report and Recommendation issued on December 6, 2023, adopts each and every finding of fact, conclusion of law, and recommendation therein as this Courts order, and makes the same an order and judgment of this Court.

2. The parties are ordered to comply with all of the provisions of the attached Magistrate's Report and Recommendation.

3. The Court retains jurisdiction to enforce and modify this order and to enter such other orders as may be necessary.

**DONE AND ORDERED** at Bradenton, Manatee County, Florida this 19<sup>th</sup> day of December, 2023.

  
CIRCUIT COURT JUDGE

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Capacity, and JILL WRIGHT, in her personal  
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**Third-Party Defendants.**

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**MAGISTRATE'S REPORT AND RECOMMENDATION**

**THIS CAUSE** came on for hearing before the undersigned General Magistrate after due notice on December 4, 2023, on the following Motions:

- Colonial Manor's Motion to Dismiss Defendant's Amended Counter Complaint filed on April 19, 2022;
- Wright's Motion to Quash Process and Service, or in the Alternative, Motion to Dismiss for Lack of Personal Jurisdiction and Failure to State a Cause of Action filed on April 19, 2022;
- Peake's Motion to Quash Process and Service, or in the Alternative, Motion to Dismiss for Lack of Personal Jurisdiction and Failure to State a Cause of Action filed on April 19, 2022;
- Colonial Manor's Section 57.105 Motion for Sanctions filed on October 31, 2022;

- Peake's Section 57.105 Motion for Sanctions October 31, 2022;
- Wright's Section 57.105 Motion for Sanctions filed on October 31, 2022;
- Colonial Manor's Motion to Have Matters Deemed Admitted filed on October 5, 2023.

Counsel for the Plaintiff appeared at the hearing held on December 4, 2023, but no other parties appeared at or participated in the hearing in any way. After carefully considering the above listed Motions, the Court file, the applicable law, and being otherwise duly advised in the premises, the Magistrate submits the following Report and Recommendation:

1. This matter was duly referred to the Magistrate for hearing by Order of Referral entered by the Court. No objections were filed or made to the General Magistrate hearing this cause pursuant to Fla. R. Civ. P. 1.490.
2. This is a civil action in which the Plaintiff seeks monetary damages for breach of fiduciary duty, declaratory and injunctive relief, and damages for breach of contract.
3. On March 21, 2023, the Court entered an Order dismissing Counts I, II, and III of the Defendant's Counterclaim, with leave to file an amended counterclaim within twenty (20) days.
4. On March 28, 2023, the Defendant filed her "Amended Plaintiff(s)/Cross Complaint Defendant(s)'s Counter Complaint."
5. On March 30, 2023, the Defendant filed two (2) separate documents titled "Summons: Personal Service on an Individual." Those documents are purportedly signed by an individual named George Yeske, and appear to be the Defendant's attempt at serving individuals named Cheryl Peake and Jill Wright with the Defendant's "Amended Plaintiff(s)/Cross Complaint Defendant(s)'s Counter Complaint."
6. On April 19, 2023, Jill Wright and Cheryl Peake each filed a Motion to Quash Process and Service, or in the Alternative, Motion to Dismiss for Lack of Personal Jurisdiction and Failure to State a Cause of Action.
7. The undersigned agrees that the Defendant's attempt to serve Jill Wright and Cheryl Peake with process in conjunction with her "Amended Plaintiff(s)/Cross Complaint Defendant(s)'s Counter Complaint" is defective because the "Summons" was not issued by the Manatee County Clerk of Court or a judge, in violation of Fla. R. Civ. P. 1.070(a),<sup>1</sup> and because the Defendant has failed to demonstrate that George Yeske is a certified process server or an individual who has been appointed by the Court to act as a process server.
8. For the foregoing reasons, it is recommended that the Motions to Quash Process and Service, or in the Alternative, Motion to Dismiss for Lack of Personal Jurisdiction and Failure to State a Cause of Action filed by Jill Wright and Cheryl Peake be **GRANTED**, and that the service

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<sup>1</sup> See *Vaughn v. Wells Fargo Bank, N.A.*, 153 So. 3d 969 (Fla. 5th DCA 2015).

of process on Jill Wright and Cheryl Peake pertaining to the Defendant's "Amended Plaintiff(s)/Cross Complaint Defendant(s)'s Counter Complaint" be **QUASHED**.

9. Next, the undersigned agrees with the Plaintiff that the Defendant's attempt to amend her Counterclaim to state a legally sufficient cause of action has been unsuccessful. As the Plaintiff points out in its Motion, the Defendant's factual allegations, which are somewhat minimal despite the length of her pleadings, are interwoven, commingled, and ambiguous as to whom each claim for relief is against now that the Defendant has elected to add two (2) more individuals as third-party defendants, and upon which set of facts each claim is based, contrary to Fla. R. Civ. P. 1.110(f).<sup>2</sup> Moreover, the Plaintiff is correct that the Defendant has failed to satisfy the mediation and arbitration requirements of Fla. Stat. §§ 723.038 and 723.0381, which are statutory conditions precedent to filing a civil action such as the one the Defendant is attempting to bring against the Plaintiff and the third-party defendants.
10. For the foregoing reasons, it is recommended that the Defendant's "Amended Plaintiff(s)/Cross Complaint Defendant(s)'s Counter Complaint" be **DISMISSED**, without prejudice to the Defendant refile her lawsuit against the Plaintiff and the Third-Party Defendants once she has satisfied the condition precedents to initiating a civil action set forth in Fla. Stat. §§ 723.038 and 723.0381.
11. Next, the undersigned recommends that Colonial Manor's Motion to Have Matters Deemed Admitted be **GRANTED**, and that all of the Plaintiff's Requests for Admission filed on August 28, 2023, be deemed admitted due to the Defendant's failure to timely respond to those requests.
12. It is further recommended that Colonial Manor's Section 57.105 Motion for Sanctions, Peake's Section 57.105 Motion for Sanctions, and Wright's Section 57.105 Motion for Sanctions each be **DENIED**. Under Florida law, "[f]ailing to state a cause of action is not, in and of itself, a sufficient basis to support a finding that a claim was so lacking in merit as to justify an award of fees pursuant to section 57.105."<sup>3</sup> In addition, "[a] finding that a party is entitled to recover attorney's fees under section 57.105 must be based upon substantial, competent evidence presented at the hearing on attorney's fees or otherwise before the court and in the record," and no such evidence was presented during the hearing held on December 4, 2023.<sup>4</sup>
13. The Court reserves jurisdiction for the implementation, enforcement, or modification of this order.
14. A record of the proceedings before the Magistrate was established by electronic means

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<sup>2</sup> See also *K.R. Exchange Services, Inc. v. Fuerst, Humphrey, Ittleman, PL*, 48 So. 3d 889, 893 (Fla. 3d DCA 2010) ("A party should plead each distinct claim in a separate count, rather than plead the various claims against all of the defendants together."); see also *Pratus v. City of Naples*, 807 So. 2d 795, 797 (Fla. 2d DCA 2002) ("The Pratuses probably have at least three separate theories or causes of action: one against the City of Naples, one against the chief of police, and one against the officer. Accordingly, each claim should be pleaded in a separate count instead of lumping all defendants together.").

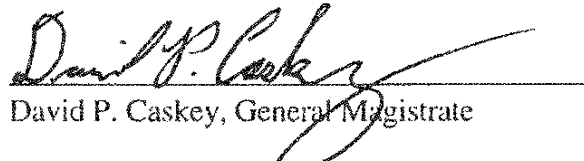
<sup>3</sup> *Mason v. Highlands County Bd. Of County Com'rs*, 817 So. 2d 922, 923 (Fla. 2d DCA 2002).

<sup>4</sup> *Id.*

pursuant to Fla. R. Civ. P. 1.490.

15. Should you wish to seek review of the Magistrate's Report and Recommendation, you must file exceptions in accordance with Fla. R. Civ. P. 1.490(i). You will be required to provide the court with a record sufficient to support your exceptions or your exceptions will be denied. A record ordinarily includes a written transcript of all relevant proceedings. The person seeking review must have the transcript prepared if necessary for the court's review. The party filing exceptions is required to send copies of the exceptions directly to the Judge assigned to this case, as well as to the undersigned Magistrate.

**FOUND AND RECOMMENDED** in Bradenton, Manatee County, Florida, this 6th day of December, 2023.

  
David P. Caskey, General Magistrate

**CERTIFICATE OF SERVICE**

I hereby certify that a true and accurate copy of the foregoing was provided to the following parties via U.S. Mail and/or electronic mail on this 6 day of December, 2023:

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By:   
Magistrate's Assistant